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Submitter Information

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General Comment

Hello, my name is Zachary Lively. I live in Georgia, and I believe that AI Generated content is a threat to not only me and my livelihood, but to the future of all work in art and engineering.

I am a small visual design artist. I serve clients in the entertainment industry. I have worked hard for years to develop the skills and knowledge to build my business, and have been lucky enough to make a decent living – until recently.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of Americans like me with their demand to create special exceptions in copyright law.

AI systems can only be produced by first training on work made by people. My work, and the work of millions of other American creators is being taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace that we built.

Now, these Big Tech companies are asking this administration to create exceptions to make this practice of stealing American creators' copyrighted work legal. They are suggesting that if a machine reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?